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Division III
State of Washington
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No. 396151

COURT OF APPEALS, DIVISION III
OF THE STATE OF WASHINGTON

BRENDA ADAMS, et al.,

Appellants,

v.

CONFLUENCE HEALTH,

Respondent.

BRIEF OF RESPONDENT

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I. INTRODUCTION

After the trial court permitted Appellants/Plaintiffs three opportunities to plead their claims, the trial court properly dismissed all of Plaintiffs' claims against Defendants Confluence Health, Central Washington Health Services Association and Wenatchee Valley Hospital & Clinics (collectively, the "Hospitals").[1] The court, after considering all inferences in favor of Plaintiffs, found that Plaintiffs failed to allege the necessary facts to sustain a conceivable (1) wrongful discharge claim in violation of public policy *or* (2) failure to accommodate claim based on a medical exemption under RCW 49.60.180.

[1] In 2021, Confluence Health ("Confluence") was a Washington non-profit corporation doing business as a regional health care organization in North Central Washington and the sole corporate member of each of Central Washington Hospital & Clinics ("CWH") and Wenatchee Valley Hospital & Clinics ("WVH"). Confluence provided administrative, financial, and human resources support for the two hospitals and their associated clinics. Effective July 1, 2023, Confluence and WVH merged with and into CWH, which is the sole surviving entity, going forward doing business as "Confluence Health."

Plaintiffs are Health Care Providers who were employed by the Hospitals in 2021.[2] CP 252. They claim they were wrongfully discharged in violation of public policy for refusing to get vaccinated against COVID-19. According to Plaintiffs, "[i]t is the clear public policy of the State of Washington that adult persons have a fundamental right to control their own decisions relating to bodily autonomy and the rendering of their own health care." *Id*.

The Court should not invent a new public policy based on Plaintiffs' private interests. An individual's private ability to decline a vaccine neither implicates nor impacts an employer's duty to follow vaccination requirements. Established case law and public policy do not allow unvaccinated individuals to continue providing direct patient care in the midst of a pandemic.

[2] The events covered by this appeal and the original lawsuit involve actions taken in 2021 and 2022, at the peak of the COVID-19 Omicron variant outbreak. Plaintiffs were offered re-employment after the pandemic waned and the vaccine mandate was lifted.

Plaintiffs' disagreements with the vaccination mandates are appropriately resolved through the legislative process, not here.

Plaintiffs also assert that the Hospitals discriminated against them based on disability. But Plaintiffs fail to allege that they were actually disabled. Rather, they assert that the Hospitals perceived them to be disabled due to their unvaccinated status and that their perceived disability should have been accommodated. The Washington State Supreme Court has flatly rejected that a claim can exist for failure to accommodate a perceived disability.

This Court should affirm dismissal of Plaintiffs' claims for wrongful discharge in violation of public policy and failure to accommodate based on a medical exemption because such claims—as alleged by Plaintiffs—are legally unsupportable.

II. RESTATEMENT OF THE ISSUES ON APPEAL

1. An employee must establish a clear statement of public policy to satisfy the clarity element of a wrongful discharge claim. The Washington State Supreme Court has held

that in order to show a clear mandate of public policy, the policy must be "truly public" and "does not exist merely because the plaintiff can point to legislation or judicial precedent that addresses the relevant issue." *Roe v. TeleTech Customer Care Mgmt. (Colorado) LLC*, 171 Wn.2d 736, 757 (2011).

Should this Court affirm dismissal of Plaintiffs' claim for wrongful discharge in violation of public policy because Plaintiffs have failed to identify a public policy mandate that rises to the level of what constitutes "truly public"? **Yes.**

2. In addition to satisfying the "clarity" element, to sustain a claim for wrongful discharge in violation of public policy, an employee must show that their conduct furthers public policy goals as opposed to a "merely private or proprietary interest," and that public policy would be jeopardized by discouraging the conduct in which the employee engaged.

Should this Court affirm dismissal of Plaintiffs' claim for wrongful discharge in violation of public policy because Plaintiffs have also failed to satisfy the jeopardy and causation

elements of the tort of wrongful discharge in violation of public policy? **Yes.**

3. When an employer is able to offer an overriding justification for the discharge from employment, despite the employee's conduct furthering public policy, Washington courts do not interfere with an employer's personnel management. The Hospitals could have been criminally charged if they had not complied with the Governor's mandates and could have exposed patients to significant health and safety risks.

Should this Court affirm dismissal of Plaintiffs' claim for wrongful discharge in violation of public policy because of the clear overriding justification supporting the removal of unvaccinated Health Care Providers from providing patient care? **Yes.**

4. To establish the prima facie elements of a claim for failure to accommodate based on a medical exemption, an employee must first allege an actual disability, and not merely a

perceived disability. Plaintiffs assert that their status of being unvaccinated against COVID-19 does not constitute a disability.

Should the Court affirm dismissal of Plaintiffs failure to accommodate claim because they have not alleged they were actually disabled? **Yes.**

III. RESTATEMENT OF THE CASE

A. Background

As the COVID-19 pandemic quickly spread throughout the state and around the world, Governor Jay Inslee issued "Proclamation by the Governor 21-14 COVID VACCINATION REQUIREMENT" ("Proclamation 21-14") to help protect vulnerable individuals and to promote public health and safety. Proclamation 21-14 made it a crime for a nonexempt Health Care Provider to work in a Health Care Setting unless fully vaccinated against COVID-19. Proclamation 21-14 set forth limited exemptions for medical reasons and did not recognize "natural

immunity" as a valid exemption. No exemption allowed an unvaccinated person to continue providing direct patient care.[3]

The United States Supreme Court in *Jacobson v. Massachusetts*, 197 U.S. 11 (1905), settled the issue of whether a vaccine mandate unconstitutionally "invade[s]" an individual's liberty interests. *Id*. at 26. There, the individual argued that his constitutional liberty interests prevented the State from enforcing the legislative-issued smallpox mandate. In support of his argument, the individual attempted to submit offers of proof from numerous medical professionals concerning the "alleged injurious or dangerous effects of vaccination." *Id.* at 26. The Court properly rejected these arguments as well as the offered proof.

The Court refused to engage in arguments concerning beliefs and science regarding the efficacy of the vaccine because

[3] Proclamation 21-14 was rescinded effective October 31, 2022, through Proclamation 21-14.6 signed by Governor Inslee on October 28, 2022.

the legislature, not courts or juries, must determine the best mode for the prevention of disease. *Id*. at 30-38. To hold otherwise would effectively strip from the State the ability to protect public health and safety. *Id*. at 30, 35.

The Court then rejected arguments that an individual's liberty interest, without more, could prevent the State from engaging in its duty to protect public health and safety:

> We are not prepared to hold that a minority, residing or remaining in any city or town where smallpox is prevalent, and enjoying the general protection afforded by an organized local government, may thus defy the will of its constituted authorities, acting in good faith for all, under the legislative sanction of the State. If such be the privilege of a minority then a like privilege would belong to each individual of the community, and the spectacle would be presented of the welfare and safety of an entire population being subordinated to the notions of a single individual who chooses to remain a part of that population. We are unwilling to hold it to be an element in the liberty secured by the Constitution of the United States that one person, or a minority of persons, residing in any community and enjoying the benefits of its local government, should have the power thus to dominate the majority when supported in their action by the authority of the State.

Id. at 37-38.

More recently, to combat the spread of COVID-19, Governor Inslee, on August 9, 2021, acting through the power vested in him by the legislature, proclaimed the need to "protect everyone, including persons who cannot be vaccinated for medical reasons, youth who are not eligible to receive a vaccine, immunocompromised individuals, and vulnerable persons including persons in health care facilities, long-term care facilities and other congregate care facilities from COVID-19." Proclamation 21-14 at 2; *see also* August 20, 2021, Amended Proclamation 21- 14.1 ("Amended Proclamation 21-14.1") at 1.

Operators of "Health Care Settings" (including the Hospitals) had a duty to require all "Health Care Providers" (including Plaintiffs) to comply with health and safety measures and abide by the standards of care "that are consistent with the recommendations of the state Department of Health." This specifically required Health Care Providers to be vaccinated unless otherwise exempt.

While employees could seek a medical or religious exemption, natural immunity could not be considered as a valid exemption.[4] Indeed, the Department of Health prohibited nonexempt employees from working in a Health Care Setting. Nothing in the Proclamation allowed a nonexempt unvaccinated employee to have direct contact with patients in a Health Care Setting. *Id*. ("If you do not meet these deadlines, including by providing proof to the operator of health care setting where you work, **then you are not permitted to work there**, unless the operator has provided you a disability or religious accommodation.") (emphasis added). Employers who violated these mandates could be charged with, and convicted of, a gross misdemeanor. RCW 43.06.220(5); Proclamation 21-14 at 8.

Due to this mandate, along with public safety concerns and other business reasons, the Hospitals no longer allowed

[4] *See, e.g.*, Department of Health 505-160, updated September 2021 at 6, available online at: https://doh.wa.gov/sites/default/files/2022-09/505-160-VaccinationRequirementFAQs.pdf

unvaccinated employees such as Plaintiffs to have direct contact with patients or otherwise be in the Health Care Setting where they could potentially expose patients or coworkers to COVID-19 or contract COVID-19. Also, in accordance with the mandate, natural immunity was not considered to be a valid exemption to the vaccination requirement.

B. Procedural Posture

On April 8, 2022, Plaintiffs filed a Complaint commencing this legal action. CP 1-8. Plaintiffs' allegations centered around their purported termination between October 2021 to January 2022 based on their decision not to receive a COVID-19 vaccination.

On May 3, 2022, Plaintiffs filed an Amended Complaint. CP 26-33. On May 25, 2022, the Hospitals filed a CR 12(b)(6) Motion to Dismiss for Failure to State a Claim. CP 51-54.

Prior to the trial court ruling on the Hospitals' first CR 12(b)(6) Motion, on August 2, 2022, Plaintiffs asked for, and were subsequently granted, leave to amend their complaint a

second time, purporting to add claims for religious and medical disability discrimination. Specifically, the Second Amended Complaint added a partial sentence that read, "[t]he discharges of the dismissed employees were because of their perceived disability of the dismissed employees *and/or constituted a failure to accommodate their claims for accommodation based on medical or religious exemptions in violation of RCW 49.60.180*." CP 250-257 (new language in italics).

On September 22, 2022, the Hospitals submitted a Second CR 12(b)(6) Motion detailing why Plaintiffs still failed to state a claim. CP 233-249.

Ultimately, the trial court granted the Hospitals' Motions to Dismiss and dismissed Plaintiffs' claims with prejudice. CP 295-313. Specifically, with regard to the Second Complaint, based on Plaintiffs' addition of exhibits in its response, the trial court converted the request into a summary judgment motion to be decided under CR 56(c). Using this standard, the trial court dismissed the initial claims of wrongful discharge in violation of

public policy, disability discrimination (disparate treatment) under the WLAD and disability discrimination (Failure to Accommodate) under the WLAD with prejudice. The claim of failure to accommodate a medical exemption was reviewed under both CR 12 and CR 56.

Here, Plaintiffs appeal only their claims for wrongful discharge in violation of public policy and failure to accommodate based on a medical exemption. Both claims fail as a matter of law.

IV. ARGUMENT

A. The Standard of Review is *de novo*

CR 12(b)(6) dismissals and CR 56 dismissals are reviewed *de novo*; the appellate court engages in the same analysis as the trial court. *See Kinney v. Cook*, 159 Wn.2d 837, 842 (2007); *Lakehaven Water & Sewer Dist. v. City of Federal Way*, 195 Wn.2d 742, 752 (2020). Dismissal is proper if the court concludes that the plaintiff can prove no set of facts that would justify recovery. *Id*. "[I]f a plaintiff's claim remains legally

insufficient even under his or her proffered hypothetical facts, dismissal pursuant to CR 12(b)(6) is appropriate." *FutureSelect Portfolio Mgmt., Inc. v. Tremont Grp. Holdings, Inc.*, 180 Wn.2d 954, 963 (2014). Moreover, the judgment of the trial court will not be reversed when it can be sustained on any theory, even when different from that indicated in the decision of the trial judge. *Sprague v. Sumitomo Forestry Co*., 104 Wn.2d 751, 758 (1985) (citing *Cheney v. Mountlake Terrace*, 87 Wn.2d 338, 552 (1976)).

B. The Court Should Affirm Dismissal of Plaintiffs' Wrongful Discharge Claim in Violation of Public Policy Because Plaintiffs' Claim Fails as a Matter of Law and Cannot Be Cured Through Further Amendment

While generally employees can quit or be fired for any reason in Washington, the tort of wrongful discharge in violation of public policy prohibits employees from being terminated in four situations:

> (1) when the employer fires an employee for refusing to commit an illegal act, (2) when the employer fires an employee for performing a public

> duty or obligation, such as serving on jury duty, (3) when an employer fires an employee for exercising a legal right or privilege, such as filing a workers' compensation claim, and (4) when an employer fires an employee in retaliation for reporting employer misconduct.

Martin v. Gonzaga Univ., 200 Wn. App. 332, 353 (2017) (citing *Gardner v. Loomis Armored, Inc*., 28 Wn.2d 931, 936 (1996)).

Here, citing RCW 70.122.010, Washington Constitution, art. I, § 7 and *McNabb v. Dept. of Corrections*, 180 P.3d 1257, 1265 (Wash. 2008), Plaintiffs claim that their actions fall under subpart (3). Specifically, Plaintiffs allege in their Second Amended Complaint that they were wrongfully terminated in violation of public policy because: (1) the Governor's mandate did not require the Hospitals to terminate them; (2) the mandates were based on a "false premise that individuals who did not get vaccinated constituted a substantially greater health care threat to the workplace than those who did submit to the vaccine"; (3) the requirement should not apply to Plaintiffs because Plaintiffs possessed a "natural immunity"; and (4) vaccines should not be

required since they are ineffective and are irrelevant. CP 250-257, ¶¶8(b)-(d).

Despite amending their Complaint two times, Plaintiffs' arguments remain legally deficient. They fail to cite any authority obligating the Hospitals to allow an unvaccinated individual to provide patient care during a pandemic, even if that individual has been granted a medical exemption. But even if such legal authority existed, Plaintiffs did not plead that each of them qualified for a medical exemption. Their claim for wrongful discharge in violation of public policy does not rely on alleged exemption status and must therefore be analyzed without consideration of any exemption status.

Additionally, a patient's ability to decline medical treatment (RCW 70.122.010) and the constitutional privacy right that allows an individual, in certain circumstances, to refuse State-imposed life-saving treatments (Washington Constitution, art. I, § 7; *McNabb v. Dept. of Corrections*, supra) does not apply to employment situations. *See generally*, *Trumbauer v. Group*

Health Coop. of Puget Sound, 635 F. Supp. 543, 549 (W.D. Wash. 1986) (dismissing the claim of wrongful termination in violation of public policy on summary judgment because constitutional provisions cited by plaintiff do not apply to a private hospital).

Finally, the Hospitals had a legal duty to follow the required COVID-19 mandates—and in doing so, they avoided criminal penalties and maintained safe workplaces in order to protect the health and safety of patients. Plaintiffs' right to make personal decisions concerning their medical treatments does not allow, much less require, an employer to deviate from legally mandated employment requirements, or to refrain from making employment decisions for legitimate health, safety, and business reasons.

In sum, Plaintiffs failed to properly plead the necessary elements of a wrongful discharge in violation of public policy action:

> (1) the existence of a clear public policy (the clarity element); (2) discouraging the conduct in which the employee engaged would jeopardize the public policy (the jeopardy element); (3) the public-policy-linked conduct caused the dismissal (the causation element); and (4) the employer must not be able to offer an overriding justification for the dismissal (the absence of justification element)

Gardner, 128 Wn.2d at 941; *Martin*, 200 Wn. App. at 353. Consequently, Plaintiffs' wrongful discharge claim should be dismissed as a matter of law.

1. The Clarity Element

The first independent reason to affirm dismissal of Plaintiffs' wrongful discharge claim in violation of public policy is that Plaintiffs have not identified an applicable public policy mandate.

Plaintiffs have the burden of proving that their discharge contravened a clear mandate of public policy. *Dicomes v. State*, 113 Wn.2d 612, 617 (Wash. 1989). Determining what constitutes a clear mandate of public policy is a matter of law. *Id*. Public policy can be found in the constitution, a statute, or a

prior court decision. *Roberts v. Dudley*, 140 Wn.2d 58, 65 (2000). Here, Plaintiffs argue that an individual's right to decline medical care creates a public policy that prohibited the Hospitals from removing them from patient care responsibilities even if the Hospitals determined that public safety concerns, compliance with directives from public health authorities, as well as the Governor, and other legitimate business reasons justified requiring employees to be vaccinated against COVID-19 as a prerequisite to providing patient care. Plaintiffs are clearly wrong. Well-settled law dictates that while an individual can refuse to be vaccinated, this does not alter an employer's duty to implement and follow workplace safety measures. *Robinson v. Children's Hosp. Bos*., No. 14-10263-DJC, 2016 BL 107526, at *10 (D. Mass. Apr. 5, 2016). Compulsory vaccination law in a health care setting can be legally enforced regardless of an employee's desire to remain unvaccinated. *Jacobson v. Massachusetts*, 197 U.S. 11, 12 (1905). This is because "the liberty secured by the Constitution of the United States to every

person within its jurisdiction does not import an absolute right in each person to be, at all times and in all circumstances, wholly freed from restraint." *Id.* at 26 (quoted with approval in *Slidewaters LLC v. Wash. Dep't of Labor & Indus.*, No. 2:20-CV-0210-TOR, 2020 BL 266904, at *5 (E.D. Wash. July 14, 2020)). "[A] community has the right to protect itself against an epidemic of disease which threatens the safety of its members." *Jacobson*, 197 U.S. at 27.

The appropriate process to follow should an unvaccinated person disagree with a vaccination mandate is to use the legislature, as opposed to the courts, because the legislature determines whether a vaccination is or is not the best mode for the prevention of disease and the protection of the public health. *Id*. at 30-38; *see also South Bay United Pentecostal Church v. Newsom*, 140 S. Ct. 1613, 1613-14, 207 L. Ed. 2d 154, 155, 2020 BL 203918, at *2 (2020) (COVID-19 health and safety measures are broadly entrusted to elected officials and "should not be subject to second-guessing by an 'unelected federal judiciary'

which lacks the background, competence, and expertise to assess public health and is not accountable to the people."); *Slidewaters*, No. 2:20-CV-0210-TOR at *6 ("It is not the Court's role to second-guess the reasoned public health decisions of other branches of government.").

The ability to decline a vaccination does not create any type of public policy requiring an employer to disregard a legally imposed vaccination requirement or create super employment rights. *E.g.*, *Hayes v. Univ. Health Shreveport, LLC*, 332 So. 3d 1163, 1166 (La. 2022) (Louisiana Medical Consent law is limited to relationship between patient and health care provider and does not support wrongful discharge claim based on hospital employee's refusal to be vaccinated against COVID-19). Rather, public policy, as manifested in both legislative and court decisions, is clear that employers have a duty to follow vaccination mandates and avoid legal consequences.

2. The Jeopardy Element

The trial court found it sufficient that Plaintiffs failed to satisfy the clarity element and went no further in its analysis. A second independent reason to affirm dismissal of Plaintiffs' wrongful discharge claim in violation of public policy is that Plaintiffs have not shown that their conduct furthers public policy goals as opposed to a "merely private or proprietary interest," and that public policy would be jeopardized by discouraging the conduct in which Plaintiffs engaged. *Rickman v. Premera Blue Cross*, 184 Wn.2d 300, 312-13 (2015); *see also Martin*, 200 Wn. App. at 356-57.

Exposing oneself to danger to save another from a life-threatening situation satisfies the jeopardy element. *E.g.*, *Gardner v. Loomis Armored, Inc*., 128 Wn.2d 931, 945 (Wash. 1996) (in violation of the employer's policy, plaintiff left the safety of the armored car to disarm a knife-wielding suspect, thereby risking his life to aid a helpless victim). By contrast, conduct that may be praiseworthy from a subjective standpoint

or may remotely benefit the public will *not* support a claim for wrongful discharge. *E.g.*, *Farnam v. CRISTA Ministries*, 116 Wn.2d 659, 671 (1991) (rejecting claim by terminated employee who urged Christian health care providers to adopt her views opposing removal of patients' NG tubes on religious grounds).

The right to refuse medical treatment and be free from State intrusion is a private right. *Compassion in Dying v. Washington*, 49 F.3d 586, 594 (9th Cir. 1995). But hospitals have a duty to provide a facility and staff to minimize the risk of spreading any virus and reduce any unnecessary exposures to vulnerable individuals. While Plaintiffs hypothesize that their natural immunity will allow them to avoid the effects of COVID-19, they make no claim that an immune-compromised individual, *e.g.*, patient, co-worker or third-party visitor to the Health Care Setting, would fare similarly. Promoting personal beliefs about the right to decline medical treatment does not encourage any public policy goal. *See Farnam*, 116 Wn.2d at 672 (urging the adoption of a particular set of beliefs will not satisfy the jeopardy

element). This point was emphasized in *Jacobson*, 197 U.S. 11, 37-38, where the Court wrote:

> We are not prepared to hold that a minority, residing or remaining in any city or town where smallpox is prevalent, and enjoying the general protection afforded by an organized local government, may thus defy the will of its constituted authorities, acting in good faith for all, under the legislative sanction of the State. If such be the privilege of a minority then a like privilege would belong to each individual of the community, and the spectacle would be presented of the welfare and safety of an entire population being subordinated to the notions of a single individual who chooses to remain a part of that population.

A declination of a vaccination is the embodiment of an individual's ability to assert a private right in defiance to any public good. As such, Plaintiffs' decision to decline to be vaccinated fails the jeopardy element.

3. The Causation Element

The third element—causation—requires a plaintiff to demonstrate that the public-policy-linked conduct caused the dismissal. To satisfy the causation element, Plaintiffs must produce evidence that the actions in furtherance of public policy

were a substantial factor motivating the employer to discharge the employee. *Martin*, 200 Wn. App. at 357.

Here, as admitted by Plaintiffs, Proclamation 21-14 required Health Care Providers, such as them, to be vaccinated. There was no exemption that allowed nonexempt unvaccinated individuals to have direct patient contact or to provide patient care.[5] The Hospitals had a duty to comply with the vaccination mandate, for the benefit of public health and to avoid criminal penalties; they could not recognize hypothetical "natural immunity" without violating the law.

Simply put, the prohibition on non-vaccinated Health Care Providers working in a Health Care Setting and public health concerns, and not any "public policy linked conduct" on the part of Plaintiffs, were the cause of why Plaintiffs were removed from providing patient care at the Hospitals.

[5] As noted *supra*, Plaintiffs' wrongful discharge in violation of public policy claim is not based on any claimed exemption status and must be analyzed through the lens applicable to nonexempt Health Care Providers.

4. The Overriding Justification Element

Finally, even when a plaintiff can provide a public policy justification, the "absence of justification" element examines whether the employer can offer an overriding justification for the discharge from employment despite the employee's conduct furthering public policy. *Martin*, 200 Wn. App. at 360-61; *Gardner*, 128 Wn.2d at 947-48. This element acknowledges that some public policies, even if clearly mandated, are not strong enough to warrant interfering with an employer's personnel management. *Id*. This includes consideration of the employer's economic needs. *Martin*, 200 Wn. App. at 366.

Courts decide this element as a matter of law because Washington does not allow a jury to measure the strength of a public policy, let alone allow a jury to compare that strength to private interests. *Id*. at 370-72. Examples of overriding justification include employers' need to protect themselves against frivolous lawsuits, employers' need to make personnel decisions without fear of incurring civil liability, and whether

employees have engaged in insubordination, such as failing to submit to a psychological examination. *Id*. at 363-73; *Gardner*, 128 Wn.2d at 948-49. Whether society has waived criminal and civil penalties stemming from the alleged policy related conduct provides guidance as to whether there is an overriding justification. *Id*.

Here, as previously described, Plaintiffs allege that the Hospitals should have recognized Plaintiffs' claimed "natural immunity" and allowed them to continue providing patient care despite being unvaccinated. However, had the Hospitals disregarded Proclamation 21-14, they could have been charged with, and convicted of, a gross misdemeanor. RCW 43.06.220(5); Proclamation 21-14 at 8. Similarly, they would have exposed themselves to claims under RCW 7.70.040 for committing medical malpractice. Health care providers have a duty to follow rules regarding patient safety and care regardless of an employee's personal beliefs. *See* RCW 7.70.040; *Farnam*, 116 Wn.2d at 669-71. A health care provider's need to follow

required health and safety practices provides an overriding justification against the tort of wrongful discharge. *Id.*[6]

Thus, as a matter of law, even had Plaintiffs provided a legally recognizable public policy justification, which they have not, there is sufficient overriding justification for their termination.

C. The Court Should Affirm Dismissal of Plaintiffs' Failure to Accommodate Based on a Medical Exemption Because Plaintiffs Have Not (and Cannot) Allege a Qualifying Disability

Plaintiffs assert that the Hospitals failed to accommodate their ***perceived*** disabilities. CP 254-255, ¶9 ("All the dismissed employees were disabled in the sense that the employer perceived each of them to have a status (lack of COVID-19 immunity produced by so called vaccination)...."). This claim does not exist under the Washington Law Against

[6] In addition to complying with Proclamation 21-14's mandate, the Hospitals were required to comply with the federal vaccination mandate imposed by the Secretary of Health and Human Services. *See Biden v. Missouri*, 211 L. Ed. 2d 433, 142 S. Ct. 647, 650 (2022).

Discrimination ("WLAD"). Although the general definition of disability includes an impairment "that is perceived to exist whether or not it exists in fact," the WLAD definition differs for purposes of reasonable accommodation. *See* RCW 49.60.040(7)(a). In the accommodation context, an impairment must be "known or shown through an interactive process to **exist in fact**." RCW 49.60.040(7)(d) (emphasis added).

The Washington State Supreme Court has in no uncertain terms stated that employees have no right to accommodation for perceived disabilities:

> When a plaintiff makes a disparate treatment claim, the plaintiff need not show that they are actually suffering from an impairment. Instead, it is enough to show that the employer discriminated against the plaintiff because it perceived the plaintiff to be suffering from an impairment. ***But in a reasonable accommodation case, the employee must show that they are actually suffering from an impairment and that the employer failed to reasonably accommodate them.***

Taylor, 193 Wn.2d at 619 (emphasis added, internal citations omitted). Further, the first element of the prima facie claim for

failure to accommodate a disability requires that the employee "had a sensory, mental, or physical abnormality...." *Johnson v. Chevron U.S.A., Inc*., 159 Wn. App. 18, 27 (2010) (emphasis added); *Davis v. Microsoft Corp*., 149 Wn.2d 521, 532 (2003). Washington courts consistently interpret this element to require proof that the employee actually had a disability. *See, e.g.*, *Fischer-McReynolds v. Quasim*, 101 Wn. App. 801, 809 (2000) ("To establish the first element, [Plaintiff] must 'produce evidence of handicap.'").

Here, Plaintiffs do not plead that they "are actually suffering from an impairment." *Taylor v. Burlington N. R.R. Holdings, Inc.*, 193 Wn.2d, 611, 619 (2019). On the contrary, Plaintiffs plead that they have "natural immunity," and do not suffer from the impairment the Hospitals allegedly perceived. This, on its own, is grounds for dismissal under CR 12(b)(6). Plaintiffs' reasonable accommodation claim simply does not exist under the WLAD, and they can prove no set of facts that

would entitle them to relief under this theory. *See Hoffer v. State*, 110 Wn.2d 415, 420 (1988).

V. CONCLUSION

Plaintiffs have not and cannot prove that they have any legal or factual basis to prevail on their claims against the Hospitals and they never did. This Court should affirm the trial court's dismissal of their claims against the Hospitals.

I certify the number of words contained in this document is 4,911 in compliance with RAP 18.17.

Dated this 7th day of July 2023.

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CERTIFICATE OF SERVICE

I, Jeffrey A. James, certify under penalty of perjury under the laws of the United States and of the State of Washington that on July 7, 2023, I caused to be served the document to which this is attached to the parties listed below in the manner shown:

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